

Judgment Sheet
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

W.P.No.46183 of 2025
(Punjab Food Authority Vs. Syed Zeeshan Ahmed, etc.)

JUDGMENT

Date of hearing: 16.09.2025

Petitioner by: Barrister Hamza Shehram Sarwar, Advocate
State by: Mr. Muhammad Nasir Chohan, Additonal
Advocate General Punjab with Nasir ASI.
Respondent by: Mr.Zafar Iqbal Bhati, Advocate.

Abher Gul Khan, J. This petition has been filed by the Punjab Food Authority through its Director General, Muhammad Asim Javaid, under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, seeking to set aside the order dated 11.06.2025 passed by the learned Additional Sessions Judge, Depalpur, whereby the order dated 28.01.2025 of the learned Senior Civil Judge (Criminal Division), Okara, refusing to grant Superdari of certain articles to Syed Zeeshan Ahmad (respondent No.1), was set aside.

2. The facts essential for the adjudication of the instant petition are that on 05.01.2025, at about 7:45 a.m., acting on information received from a confidential source, Toheed-ur-Rehman Saadi, Assistant Food Safety Officer, Okara, conducted a raid at Faizan Foods, a spice packing unit located at Shop No. 46, Ghalla Mandi, Depalpur. During the raid, certain edible items were found to be adulterated, and various materials, including packing machines, were seized. Consequently, FIR No. 26/2025 dated 05.01.2025 was registered under Sections 22, 22-A, 23, 24, 26, 27, and 28 of the Punjab Food Authority Act, 2011 (hereinafter referred to as the "**PFA Act, 2011**") at Police Station City Depalpur. After a thorough probe, the report under Section 173 Cr.P.C. was

submitted before the Special Court established under Section 40 of the PFA Act, 2011. During the pendency of proceedings, Syed Zeeshan Ahmad (respondent No.1), moved an application before the learned Senior Civil Judge (Criminal Division), Okara, seeking Superdari of three packing machines, one sealer, one weighing scale, eleven packing reels, and one spade. The learned Special Court (Senior Civil Judge), *vide* order dated 28.01.2025, dismissed the application to the extent of the sealer and eleven packing reels, while allowing it with respect to the weighing scale and spade. Dissatisfied with the partial dismissal, respondent No.1 filed a criminal revision petition, which was allowed by learned ASJ, Depalpur *vide* order dated 11.06.2025. Through the said order, Superdari of three packing machines, a grinder, one sealer, and eleven packing reels was directed to be handed over to respondent No.1. Aggrieved by the aforesaid order, the present petition has been filed.

3. Arguments heard. Record perused.

4. The primary contention raised by the learned counsel for the petitioner is that the impugned order is *coram non judice*, and for this reason alone, it is liable to be set aside. The term *coram non judice*, a Latin expression, denotes a decision rendered by a judge or forum that lacks the lawful authority to adjudicate the matter. It refers to instances where a judicial or quasi-judicial body proceeds without jurisdiction or legal competence. In view of foregoing, I have carefully examined the record and observed that, under Section 40 of the PFA Act, 2011, a Special Court is established specifically to try offences arising under the said Act. Moreover, Section 43(1) of the PFA Act, 2011 authorizes the Special Court to impose a sentence of imprisonment for a term not exceeding six months or a fine not exceeding one million rupees for offences under the Act. However, Section 43(2) of the same Act further empowers the Special Court to conduct proceedings in accordance with

Chapter XX of Cr.P.C., where the nature of the offence does not warrant summary trial. In addition, the PFA Act, 2011 grants a statutory right of appeal to a convict before the High Court under Section 45A, which, for ease of reference, is reproduced below:-

“45A. Appeal against conviction. (1) The Authority or the person sentenced by a Special Court may, within thirty days from the date of communication of the order, file an appeal against a final order of the Special Court to Lahore High Court.

(2) Save as provided in this Act or rules, no Court shall take cognizance or revise a sentence or transfer any case from a Special Court or make order under section 426, 491 or 498 of the Code or have jurisdiction of any kind in respect of any proceedings of the Special Court.”

(emphasis supplied)

A plain reading of the aforementioned provision reveals that under Section 45A(2) of the PFA Act, 2011, the High Court is precluded from altering the sentence awarded by the Special Court or intervening in the conduct of the trial. The term “proceedings” as used in subsection (2) of Section 45A encompasses all matters directly connected with or incidental to the trial of an accused before the Special Court. Furthermore, the language of the provision clearly indicates that Section 45A(2) imposes an embargo on all courts from transferring cases from the Special Court or passing orders under Sections 426, 491, and 498 of Cr.P.C. However, it is significant to note that the said subsection does not expressly exclude the application of Sections 497 & 561-A Cr.P.C., and therefore, the High Court retains the jurisdiction to invoke these provisions in appropriate circumstances. Reliance is placed upon the case reported as *Punjab Food Authority v. Amanat Ali and others* (PLD 2020 Lahore 599) wherein the following observation was given:-

“For the sake of completeness it may be added that subsection (2) of Section 45A of the Food Authority Act bars all courts from transferring a case from the Special Court and making orders under Sections 426, 491 and 498 of the Code. However, it needs to be mentioned that since the aforesaid clause does not specifically exclude the

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applicability of Sections 497 & 561-A Cr.P.C., the High Court is competent to invoke them in appropriate cases.”

5. Turning to the present case, it is observed that the learned Senior Civil Judge (Criminal Division), Okara, while exercising jurisdiction as the Special Court, passed an order dated 28.01.2025 on the application for Superdari of goods and equipment filed by Syed Zeeshan Ahmad (respondent No.1) during the pendency of proceedings arising out of FIR No.26/2025 (as mentioned above). In such circumstances, the said order was amenable only to challenge before this Court through a petition under Section 561-A of Cr.P.C., however, rather than pursuing the appropriate remedy, Zeeshan Ahmad (respondent No.1) preferred a criminal revision before the learned Additional Sessions Judge, Depalpur, who vide order dated 11.06.2025, set aside the order of the Special Court. It is pertinent to note that the learned Additional Sessions Judge lacked the jurisdiction to entertain and decide such a revision petition, and ought to have returned it accordingly. The fact that the learned ASJ proceeded to adjudicate the matter suggests a lack of familiarity with the provisions of the PFA, Act, 2011. Consequently, the impugned order is without lawful authority and is liable to be set aside.

6. In light of the foregoing discussion, this petition is allowed, and as a result, the order dated 11.06.2025 passed by the learned Additional Sessions Judge, Depalpur stands set aside.

(ABHER GUL KHAN)
JUDGE

Approved for reporting.

JUDGE